

LEGISLATURE OF NEBRASKA
ONE HUNDRED NINTH LEGISLATURE
SECOND SESSION

LEGISLATIVE BILL 781

Introduced by Ballard, 21.

Read first time January 07, 2026

Committee:

- 1 A BILL FOR AN ACT relating to motor vehicles; to amend sections 18-1737,
- 2 60-201, 60-3,193.01, 60-462.01, 60-4,132, 60-501, 60-2705,
- 3 60-2909.01, 75-365, 75-369.03, 75-392, and 75-393, Revised Statutes
- 4 Supplement, 2025; to adopt updates to federal law and update certain
- 5 federal references; to change civil penalties against certain motor
- 6 carriers; to repeal the original sections; and to declare an
- 7 emergency.
- 8 Be it enacted by the people of the State of Nebraska,

1 **Section 1.** Section 18-1737, Revised Statutes Supplement, 2025, is
2 amended to read:

3 18-1737 (1) Any city or village, any state agency, and any person in
4 lawful possession of any offstreet parking facility may designate stalls
5 or spaces, including access aisles, in such facility owned or operated by
6 the city, village, state agency, or person for the exclusive use of
7 handicapped or disabled persons whose motor vehicles display the
8 distinguishing license plates issued to such individuals pursuant to
9 section 60-3,113, such other handicapped or disabled persons or
10 temporarily handicapped or disabled persons whose motor vehicles display
11 a handicapped or disabled parking permit, and such other motor vehicles
12 which display a handicapped or disabled parking permit. Such designation
13 shall be made by posting aboveground and immediately adjacent to and
14 visible from each stall or space, including access aisles, a sign which
15 is in conformance with the Manual on Uniform Traffic Control Devices
16 adopted pursuant to section 60-6,118 and the federal Americans with
17 Disabilities Act of 1990 and the federal regulations adopted in response
18 to the act, as the act and the regulations existed on January 1, 2026
19 ~~2025~~.

20 (2) The owner or person in lawful possession of an offstreet parking
21 facility, after notifying the police or sheriff's department, as the case
22 may be, and any city, village, or state agency providing onstreet parking
23 or owning, operating, or providing an offstreet parking facility may
24 cause the removal, from a stall or space, including access aisles,
25 designated exclusively for handicapped or disabled persons or temporarily
26 handicapped or disabled persons or motor vehicles for the transportation
27 of handicapped or disabled persons or temporarily handicapped or disabled
28 persons, of any vehicle not displaying the proper handicapped or disabled
29 parking permit or the distinguishing license plates specified in this
30 section if there is posted aboveground and immediately adjacent to and
31 visible from such stall or space, including access aisles, a sign which

1 clearly and conspicuously states the area so designated as a tow-in zone.

2 (3) A person who parks a vehicle in any onstreet parking space or
3 access aisle which has been designated exclusively for handicapped or
4 disabled persons or temporarily handicapped or disabled persons or motor
5 vehicles for the transportation of handicapped or disabled persons or
6 temporarily handicapped or disabled persons, or in any so exclusively
7 designated parking space or access aisle in any offstreet parking
8 facility, without properly displaying the proper license plates or
9 handicapped or disabled parking permit or when the handicapped or
10 disabled person to whom or for whom, as the case may be, the license
11 plate or permit is issued will not enter or exit the vehicle while it is
12 parked in the designated space or access aisle shall be guilty of a
13 handicapped parking infraction as defined in section 18-1741.01 and shall
14 be subject to the penalties and procedures set forth in sections
15 18-1741.01 to 18-1741.07. The display on a motor vehicle of a
16 distinguishing license plate or permit issued to a handicapped or
17 disabled person by and under the duly constituted authority of another
18 state shall constitute a full and complete defense in any action for a
19 handicapped parking infraction as defined in section 18-1741.01. If the
20 identity of the person who parked the vehicle in violation of this
21 section cannot be readily determined, the owner or person in whose name
22 the vehicle is registered shall be held prima facie responsible for such
23 violation and shall be guilty and subject to the penalties and procedures
24 described in this section. In the case of a privately owned offstreet
25 parking facility, a city or village shall not require the owner or person
26 in lawful possession of such facility to inform the city or village of a
27 violation of this section prior to the city or village issuing the
28 violator a handicapped parking infraction citation.

29 (4) For purposes of this section and section 18-1741.01, state
30 agency means any division, department, board, bureau, commission, or
31 agency of the State of Nebraska created by the Constitution of Nebraska

1 or established by act of the Legislature, including the University of
2 Nebraska and the Nebraska state colleges, when the entity owns, leases,
3 controls, or manages property which includes offstreet parking
4 facilities.

5 **Sec. 2.** Section 60-201, Revised Statutes Supplement, 2025, is
6 amended to read:

7 60-201 For purposes of the adoption by reference of federal law and
8 regulations contained in the Motor Vehicle Certificate of Title Act, the
9 Motor Vehicle Registration Act, the Motor Vehicle Operator's License Act,
10 and the Nebraska Rules of the Road, when a provision of any of such acts
11 refers to the date specified in this section, such date is January 1,
12 2026 ~~2025~~.

13 **Sec. 3.** Section 60-3,193.01, Revised Statutes Supplement, 2025, is
14 amended to read:

15 60-3,193.01 For purposes of the Motor Vehicle Registration Act, the
16 International Registration Plan is adopted and incorporated by reference
17 as the plan existed on January 1, 2026 ~~2025~~.

18 **Sec. 4.** Section 60-462.01, Revised Statutes Supplement, 2025, is
19 amended to read:

20 60-462.01 For purposes of the Motor Vehicle Operator's License Act,
21 the following federal regulations are adopted as Nebraska law as they
22 existed on January 1, 2026 ~~2025~~:

23 The parts, subparts, and sections of Title 49 of the Code of Federal
24 Regulations, as referenced in the Motor Vehicle Operator's License Act.

25 **Sec. 5.** Section 60-4,132, Revised Statutes Supplement, 2025, is
26 amended to read:

27 60-4,132 The purposes of sections 60-462.01, 60-4,133, and 60-4,137
28 to 60-4,172 are to implement the requirements mandated by the federal
29 Commercial Motor Vehicle Safety Act of 1986, 49 U.S.C. 31100 et seq., the
30 federal Motor Carrier Safety Improvement Act of 1999, Public Law 106-159,
31 49 U.S.C. 101 et seq., section 1012 of the federal Uniting and

1 Strengthening America by Providing Appropriate Tools Required to
2 Intercept and Obstruct Terrorism Act of 2001, USA PATRIOT Act, 49 U.S.C.
3 5103a, and federal regulations as such acts and regulations existed on
4 January 1, 2026 ~~2025~~, and to reduce or prevent commercial motor vehicle
5 accidents, fatalities, and injuries by: (1) Permitting drivers to hold
6 only one operator's license; (2) disqualifying drivers for specified
7 offenses and serious traffic violations; and (3) strengthening licensing
8 and testing standards.

9 **Sec. 6.** Section 60-501, Revised Statutes Supplement, 2025, is
10 amended to read:

11 60-501 For purposes of the Motor Vehicle Safety Responsibility Act,
12 unless the context otherwise requires:

13 (1) Department means Department of Motor Vehicles;

14 (2) Former military vehicle means a motor vehicle that was
15 manufactured for use in any country's military forces and is maintained
16 to accurately represent its military design and markings, regardless of
17 the vehicle's size or weight, but is no longer used, or never was used,
18 by a military force;

19 (3) Golf car vehicle means a vehicle that has at least four wheels,
20 has a maximum level ground speed of less than twenty miles per hour, has
21 a maximum payload capacity of one thousand two hundred pounds, has a
22 maximum gross vehicle weight of two thousand five hundred pounds, has a
23 maximum passenger capacity of not more than four persons, and is designed
24 and manufactured for operation on a golf course for sporting and
25 recreational purposes;

26 (4) Judgment means any judgment which shall have become final by the
27 expiration of the time within which an appeal might have been perfected
28 without being appealed, or by final affirmation on appeal, rendered by a
29 court of competent jurisdiction of any state or of the United States, (a)
30 upon a cause of action arising out of the ownership, maintenance, or use
31 of any motor vehicle for damages, including damages for care and loss of

1 services, because of bodily injury to or death of any person or for
2 damages because of injury to or destruction of property, including the
3 loss of use thereof, or (b) upon a cause of action on an agreement of
4 settlement for such damages;

5 (5) License means any license issued to any person under the laws of
6 this state pertaining to operation of a motor vehicle within this state;

7 (6)(a) Low-speed vehicle means any:

8 (i) Four-wheeled motor vehicle:

9 (A) With a speed attainable in one mile of more than twenty miles
10 per hour and not more than twenty-five miles per hour on a paved, level
11 surface;

12 (B) With a gross vehicle weight rating of less than three thousand
13 pounds; and

14 (C) That complies with 49 C.F.R. part 571, as such part existed on
15 January 1, 2026 ~~2025~~; or

16 (ii) Three-wheeled motor vehicle:

17 (A) With a speed attainable of not more than twenty-five miles per
18 hour on a paved, level surface;

19 (B) With a gross vehicle weight rating of less than three thousand
20 pounds; and

21 (C) That is equipped with a windshield and an occupant protection
22 system.

23 (b) Low-speed vehicle does not include a motorcycle with a sidecar;

24 (7) Minitruck means a foreign-manufactured import vehicle or
25 domestic-manufactured vehicle which (a) is powered by an internal
26 combustion engine with a piston or rotor displacement of one thousand
27 five hundred cubic centimeters or less, (b) is sixty-seven inches or less
28 in width, (c) has a dry weight of four thousand two hundred pounds or
29 less, (d) travels on four or more tires, (e) has a top speed of
30 approximately fifty-five miles per hour, (f) is equipped with a bed or
31 compartment for hauling, (g) has an enclosed passenger cab, (h) is

1 equipped with headlights, taillights, turnsignals, windshield wipers, a
2 rearview mirror, and an occupant protection system, and (i) has a four-
3 speed, five-speed, or automatic transmission;

4 (8) Motor vehicle means any self-propelled vehicle which is designed
5 for use upon a highway, including trailers designed for use with such
6 vehicles, minitrucks, and low-speed vehicles. Motor vehicle includes a
7 former military vehicle. Motor vehicle does not include (a) mopeds as
8 defined in section 60-637, (b) traction engines, (c) road rollers, (d)
9 farm tractors, (e) tractor cranes, (f) power shovels, (g) well drillers,
10 (h) every vehicle which is propelled by electric power obtained from
11 overhead wires but not operated upon rails, (i) electric personal
12 assistive mobility devices as defined in section 60-618.02, (j) off-road
13 designed vehicles, including, but not limited to, golf car vehicles, go-
14 carts, riding lawnmowers, garden tractors, all-terrain vehicles and
15 utility-type vehicles as defined in section 60-6,355, minibikes as
16 defined in section 60-636, and snowmobiles as defined in section 60-663,
17 and (k) bicycles as defined in section 60-611;

18 (9) Nonresident means every person who is not a resident of this
19 state;

20 (10) Nonresident's operating privilege means the privilege conferred
21 upon a nonresident by the laws of this state pertaining to the operation
22 by him or her of a motor vehicle or the use of a motor vehicle owned by
23 him or her in this state;

24 (11) Operator means every person who is in actual physical control
25 of a motor vehicle;

26 (12) Owner means a person who holds the legal title of a motor
27 vehicle, or in the event (a) a motor vehicle is the subject of an
28 agreement for the conditional sale or lease thereof with the right of
29 purchase upon performance of the conditions stated in the agreement and
30 with an immediate right of possession vested in the conditional vendee or
31 lessee or (b) a mortgagor of a vehicle is entitled to possession, then

1 such conditional vendee or lessee or mortgagor shall be deemed the owner
2 for the purposes of the act;

3 (13) Person means every natural person, firm, partnership, limited
4 liability company, association, or corporation;

5 (14) Proof of financial responsibility means evidence of ability to
6 respond in damages for liability, on account of accidents occurring
7 subsequent to the effective date of such proof, arising out of the
8 ownership, maintenance, or use of a motor vehicle, (a) in the amount of
9 twenty-five thousand dollars because of bodily injury to or death of one
10 person in any one accident, (b) subject to such limit for one person, in
11 the amount of fifty thousand dollars because of bodily injury to or death
12 of two or more persons in any one accident, and (c) in the amount of
13 twenty-five thousand dollars because of injury to or destruction of
14 property of others in any one accident;

15 (15) Registration means registration certificate or certificates and
16 registration plates issued under the laws of this state pertaining to the
17 registration of motor vehicles;

18 (16) State means any state, territory, or possession of the United
19 States, the District of Columbia, or any province of the Dominion of
20 Canada; and

21 (17) The forfeiture of bail, not vacated, or of collateral deposited
22 to secure an appearance for trial shall be regarded as equivalent to
23 conviction of the offense charged.

24 **Sec. 7.** Section 60-2705, Revised Statutes Supplement, 2025, is
25 amended to read:

26 60-2705 (1) The Director of Motor Vehicles shall adopt standards for
27 an informal dispute settlement procedure which substantially comply with
28 the provisions of 16 C.F.R. part 703, as such part existed on January 1,
29 2026 ~~2025~~.

30 (2) If a manufacturer has established or participates in a dispute
31 settlement procedure certified by the Director of Motor Vehicles within

1 the guidelines of such standards, the provisions of section 60-2703
2 concerning refunds or replacement shall not apply to any consumer who has
3 not first resorted to such a procedure.

4 **Sec. 8.** Section 60-2909.01, Revised Statutes Supplement, 2025, is
5 amended to read:

6 60-2909.01 The department and any officer, employee, agent, or
7 contractor of the department having custody of a motor vehicle record
8 shall, upon the verification of identity and purpose of a requester,
9 disclose and make available the requested motor vehicle record, including
10 the sensitive personal information in the record, other than the social
11 security number, for the following purposes:

12 (1) For use by any federal, state, or local governmental agency,
13 including any court or law enforcement agency, in carrying out the
14 agency's functions or by a private person or entity acting on behalf of a
15 governmental agency in carrying out the agency's functions;

16 (2) For use in connection with any civil, criminal, administrative,
17 or arbitral proceeding in any federal, state, or local court or
18 governmental agency or before any self-regulatory body, including service
19 of process, investigation in anticipation of litigation, and execution or
20 enforcement of judgments and orders, or pursuant to an order of a
21 federal, state, or local court, an administrative agency, or a self-
22 regulatory body;

23 (3) For use by any insurer or insurance support organization, or by
24 a self-insured entity, or its agents, employees, or contractors, in
25 connection with claims investigation activities, anti-fraud activities,
26 rating, or underwriting;

27 (4) For use by an employer or the employer's agent or insurer to
28 obtain or verify information relating to a holder of a commercial
29 driver's license or CLP-commercial learner's permit that is required
30 under the Commercial Motor Vehicle Safety Act of 1986, 49 U.S.C. 31301 et
31 seq., as such act existed on January 1, 2026 2025, or pursuant to

1 sections 60-4,132 and 60-4,141; and

2 (5) For use by employers of a holder of a commercial driver's
3 license or CLP-commercial learner's permit and by the Commercial Driver
4 License Information System as provided in section 60-4,144.02 and 49
5 C.F.R. 383.73, as such regulation existed on January 1, 2026 ~~2025~~.

6 **Sec. 9.** Section 75-365, Revised Statutes Supplement, 2025, is
7 amended to read:

8 75-365 (1) Definitions contained in the regulations referred to in
9 sections 75-363 and 75-364 shall only apply to such regulations.

10 (2) When the regulations referred to in sections 75-363 and 75-364
11 require that any person submit a report to the United States Department
12 of Transportation or any other federal agency, that person shall also
13 submit a copy of the report to the Nebraska State Patrol.

14 (3) For purposes of sections 75-362 to 75-369.07, when a provision
15 of any of such sections refers to the date specified in this section,
16 such date is January 1, 2026 ~~2025~~.

17 **Sec. 10.** Section 75-369.03, Revised Statutes Supplement, 2025, is
18 amended to read:

19 75-369.03 (1) The Superintendent of Law Enforcement and Public
20 Safety may issue an order imposing a civil penalty against a motor
21 carrier transporting persons or property in interstate commerce for a
22 violation of sections 75-392 to 75-3,100 or against a motor carrier
23 transporting persons or property in intrastate commerce for a violation
24 or violations of section 75-363 or 75-364 based upon an inspection
25 conducted pursuant to section 75-366 in an amount which shall not exceed
26 one thousand twenty-eight ~~one thousand two~~ dollars for any single
27 violation in any proceeding or series of related proceedings against any
28 person or motor carrier as defined in 49 C.F.R. 390.5 as adopted in
29 section 75-363.

30 (2) The superintendent shall issue an order imposing a civil penalty
31 in an amount not to exceed twenty thousand five hundred thirty-seven

1 ~~twenty thousand seventeen~~ dollars against a motor carrier transporting
2 persons or property in interstate commerce for a violation of subdivision
3 (2)(e) of section 60-4,162 based upon a conviction of such a violation.

4 (3) The superintendent shall issue an order imposing a civil penalty
5 against a driver operating a commercial motor vehicle, as defined in
6 section 60-465, that requires a commercial driver's license or CLP-
7 commercial learner's permit, in violation of an out-of-service order. The
8 civil penalty shall be in an amount not less than three thousand nine
9 hundred sixty-one ~~three thousand eight hundred sixty-one~~ dollars for a
10 first violation and not less than seven thousand nine hundred twenty-four
11 ~~seven thousand seven hundred twenty-three~~ dollars for a second or
12 subsequent violation.

13 (4) The superintendent shall issue an order imposing a civil penalty
14 against a motor carrier who knowingly allows, requires, permits, or
15 authorizes the operation of a commercial motor vehicle, as defined in
16 section 60-465, that requires a commercial driver's license or CLP-
17 commercial learner's permit, in violation of an out-of-service order. The
18 civil penalty shall be not less than seven thousand one hundred fifty-
19 five ~~six thousand nine hundred seventy-four~~ dollars but not more than
20 thirty-nine thousand six hundred fifteen ~~thirty-eight thousand six~~
21 ~~hundred twelve~~ dollars per violation.

22 (5) Upon the discovery of any violation by a motor carrier
23 transporting persons or property in interstate commerce of section
24 75-307, 75-363, or 75-364 or sections 75-392 to 75-3,100 based upon an
25 inspection conducted pursuant to section 75-366, the superintendent shall
26 immediately refer such violation to the appropriate federal agency for
27 disposition, and upon the discovery of any violation by a motor carrier
28 transporting persons or property in intrastate commerce of section 75-307
29 based upon such inspection, the superintendent shall refer such violation
30 to the Public Service Commission for disposition.

31 **Sec. 11.** Section 75-392, Revised Statutes Supplement, 2025, is

1 amended to read:

2 75-392 For purposes of sections 75-392 to 75-3,100:

3 (1) Director means the Director of Motor Vehicles;

4 (2) Division means the Division of Motor Carrier Services of the
5 Department of Motor Vehicles; and

6 (3) Unified carrier registration plan and agreement means the plan
7 and agreement established and authorized pursuant to 49 U.S.C. 14504a, as
8 such section existed on January 1, 2026 ~~2025~~.

9 **Sec. 12.** Section 75-393, Revised Statutes Supplement, 2025, is
10 amended to read:

11 75-393 The director may participate in the unified carrier
12 registration plan and agreement pursuant to the Unified Carrier
13 Registration Act of 2005, 49 U.S.C. 13908, as the act existed on January
14 1, 2026 ~~2025~~, and may file on behalf of this state the plan required by
15 such plan and agreement for enforcement of the act in this state.

16 **Sec. 13.** Original sections 18-1737, 60-201, 60-3,193.01, 60-462.01,
17 60-4,132, 60-501, 60-2705, 60-2909.01, 75-365, 75-369.03, 75-392, and
18 75-393, Revised Statutes Supplement, 2025, are repealed.

19 **Sec. 14.** Since an emergency exists, this act takes effect when
20 passed and approved according to law.